Ex Tempore

PHIKISAYI CHIWAWA DZHEKA
and
EPHRAIM PEKEMA
and
ISHMAEL MARIMIROFA
and
AERLEA MAVENGERE
and
SHEPARD CHIDYAUSIKU
and
TAPIWA TERENCE CHIWOREKA
and
ASHTOD SAMAMBWA
and
KUDAKWASHE NGAVAITE
and
MAUREEN MARIMIROFA
and
BESS MUSINDO
and
TAKAWIRA NYANINGWE
and
FARAI NYONI
and
ADMIRE MUSIWA
and
GILSON CHULU
and
REASON SAMAMBWA
and
CREBBY MABVURE
and
KIPINAI CHIGOGO
and
ABIGIRL CHITENGU
and
ZABRON WUNDA
and
BRIAN MANYEMBERE
and
LINK SAFUNIKA CHIKADZA
and

LAWSON CHIKADZA
and
KAMPLUTE TOM
and
ROBERT VUNZAWAYA
and
JOSEPH MUZVONDIWA
and
TIRIVANGANI CHIDYAUSIKU
and
ZACHARIA AUGUSTO
and
TAKESURE KAYONZA
versus
AFRICAN APOSTOLIC FAITH MISSION IN ZIMBABWE
and
COSMAS NYIKA
and
ABEL GWAHARA (MAMBINYA)
and
WILLIAM MUYENGE
and
TAWANDA SANGOMA
and
JUSTICE NYENYEWA
and
ANOLD MUTEPFA
and
MOFFAT ELIAS CHINYUKU
and
JEREMIAH KAMIREMIRE
and
GAVHU MKONDO
and
GODFREY MALUFU

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 23 June 2026 and 27 July 2026.

Opposed Application

B Hwachi, for the Applicants
T.Moyo & V Mulambo, for the Respondents

DEME J: The Applicants approached this court through application for review lodged in terms of Rule 62. In particular, the Applicants are seeking the following relief:

> "1. The application be and is hereby granted.
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> 2. The resolution of the 1st Respondent's General Assembly made on the 1st of February 2025 at Stand Number 10369 Zororo, Highfied (sic) Harare to expel the Applicants from the 1st Respondent be and is hereby set aside.
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> 3. All the resolution(sic) of the 1st Respondent's General Assembly made on the 1st of February 2025 at Stand 10369 Zororo, Highfield, Harare be and is hereby set aside.
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> 4. The 2nd to 11th Respondents shall pay costs of suit."

The application was based on the following grounds:

> "1. The General Assembly of the 1st Respondent which expelled the Applicants was not properly constituted as required by the church constitution.
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> 2. The General Assembly of the 1st Respondent which expelled the Applicants from the church had no authority to expel the applicants since it derived powers from non-existent bodies which are not provided in the church constitution.
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> 3. The General Assembly of the 1st Respondent which expelled the Applicants from the church did not follow the procedure provided for in the church constitution when expelling leaders of the 1st Respondent.
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> 4. The decision made by the 1st Respondent's General Assembly to expel Applicants from the church is illegal in that:
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> (i) The 1st Respondent's General Assembly meeting which decided to expel applicants on the 1st of February 2025 at Stand Number 10369 Zororo, Highfied (sic) Harare from the church did not have the necessary quorum to pass binding decisions as stipulated in the existing constitution.
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> (ii) The 1st Respondent's General Assembly had no power and/or jurisdiction to expel the Applicants since the 2nd to 11th Respondents are deriving their authority from interim National Management Board and interim Synod to interim Mission Board which are not provided for by the 1st Respondent's constitution.
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> (iii) The 1st Respondent's General Assembly did not follow the provisions of the 1st Respondent's Constitution when leaders are being expelled from the church since all the Applicants are leaders in the 1st Respondent. The decision of the General Assembly is therefore illegal."

The matter was opposed by the Respondents who raised points *in limine.* Firstly, the Respondents argued that the 1st Applicant lacks *locus standi* following his resignation from his office. Secondly, the Respondents argued that the Applicants failed to attach the record of proceedings to the application. In their third point *in limine*, the Respondents contended that this court does not have jurisdiction to review matters of a voluntary organization.

The Applicants also raised their points *in limine* against the Respondents' opposing papers filed. The Applicants averred that the 4th Respondent has no authority to depose to the opposing affidavit. Motivating this, Mr. Hwachi argued that the 4th Respondent is not the General Secretary of the 1st Respondent as alleged. On this basis, Mr. Hwachi submitted that the 1st Respondent is improperly before the court and hence the matter should be deemed to be an unopposed matter. In their second point *in limine*, the Applicants affirmed that supporting affidavits by the other Respondents are improperly before the court as they do not reflect the case details for which they are intended to be used. In their last point *in limine*, the Applicants asserted that the documents attached to the opposing affidavit which have not been translated into English must be expunged from the record.

I will now proceed to deal with the issue of the record of proceedings as a point *in limine* raised by the Respondents. Mr. Moyo referred the court to Rule 62(5) which makes it mandatory that the Applicant must attach the record of proceedings. He submitted that any failure to comply with the Rules makes the application improperly before the court. He further submitted that the Applicants failed to file the attendance register and the minutes of the proceedings of the decision sought to be challenged. On this basis, Mr. Moyo maintained that the record attached to the founding affidavit is incomplete. Reference was made to the cases of *Minister of Mines and Mining Development and Anor* v *Fidelity Partners and Refines (Pvt) Ltd and Anor*[1], *Rusheshe* v *Desa*[2], *TM Supermarkets (Pvt) Ltd* v *Nkomo*[3], *Mupinigu* v *Minister of Justice, Legal and Parliamentary Affairs*[4] *and Augusto* v *African Apostolic Faith Mission in Zimbabwe*[5].

[1] CCZ8/22.

[2] CCZ24/17.

Responding to this point *in limine*, Mr. Hwachi argued that the Respondents failed to prove that there was a complete record other than what was attached to the present application. He further submitted that what was attached is what they were able to get. He also maintained that the Respondents filed the same record in case number HCH533/25. On this basis, Mr. Hwachi argued that the court ought to consider this as a true record of what transpired on 1 February 2025. The court was referred to pages 187/197 of the record. Mr. Hwachi prayed for the dismissal of the point *in limine*.

Rule 62(5) of the High Court Rules provides for the need to file record of proceedings. It provides as follows:

> "(5) The clerk of the inferior court whose proceedings are being brought on review, or the tribunal, board or officer whose proceedings are being brought on review, shall, within twelve days of the date of service of the application for review, lodge with the registrar the original record, together with two typed copies, which copies shall be certified as true and correct copies. The parties to the review requiring copies of the record for their own use shall obtain them from the official who prepared the record:
>
> Provided that it shall be the responsibility of the party seeking review to ensure compliance with this subrule."

What was attached on pages 188/197 is not sounding like a complete record of proceedings. Encapsulated on those pages through the letter are the resolutions reached at the meeting. The heading of such document reads:

> "RE: 2024 ANNUAL GENERAL MEETING RESOLUTIONS OF THE AFRICAN APOSTOLIC FAITH IN ZIMBABWE"

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[3] SC26/18.

[4] CCZ7/21.

[5] HH612/24.

There is no record of what transpired on 1 February 2025. A meeting outcome cannot be solely captured through the resolutions. There is need to capture deliberations which occurred at the meeting in the form of minutes. The register for the attendance must also be part of the record. These are some of the vivid examples of the glaring omissions of the purported record of proceedings sought to be relied upon by the Applicants. The court cannot be invited to make a determination of the proceedings in the absence of a complete record. Doing so would be flying against the provisions of the Rules. Accordingly, the present application is improperly before the court. It ought to be struck from the roll. Having made this finding, there is no need for the court to venture into the rest of the points *in limine* raised by the parties.

With respect to costs, costs ordinarily follow the outcome. I have not been persuaded by any party to have a departure from this rule. The Applicants must bear costs of suit on an ordinary scale. Such costs are reasonably sufficient. In the circumstances, it is ordered as follows:

A. The point *in limine* raised by the Respondents that the application is improperly before the court on the basis of incomplete record of proceedings be and is hereby upheld.

B. Consequently, the application be and is hereby struck from the roll with costs.

DEME J ……...

Nyikadzino, Simango & Associates; Applicants' Legal Practitioners
Tamuka Moyo Attorneys; Respondents' Legal Practitioners